

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC
OF LIBERIA, SITTING IN ITS OCTOBER TERM, A.D. 2015.

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HIS HONOR: KABINEH M. JA'NEHASSOCIATE JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: PHILIP A.Z. BANKS, III.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE

K & H Construction Company,
represented by its authorized
representative, NajibKammand,
also of the city of Monrovia,
Liberia.....Appellant

Versus

The Realty Trust of the late
William E. Dennis, Sr., represented
by its Trustee, Hillary A. Dennis,
of Monrovia, Liberia.....Appellee

} Appeal

GROWING OUT OF THE CASE:

The Realty Trust of the late
William E. Dennis, Sr., represented
by its Trustee, Hillary A. Dennis,
of Monrovia, Liberia.....Petitioner

Versus

K & H Construction Company,
represented by its authorized
representative, NajibKammand,
also of the city of Monrovia,
Liberia.....Respondent

} Petition for Declaratory
Judgment

Heard: April 9, 2015

Decided: February 5, 2016

MADAM JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

The identical parties in this appeal are before this Court for the third time regarding the terms and conditions of two agreements of lease.

In order to have a comprehensive appreciation of this matter, we must revert to the records prompting the first and second appeals, including the pleadings of the parties, the trial court's rulings and the Supreme Court's opinions, as well as the issues presented therein. Thereafter, we shall review and relate same to the certified records of the present appeal, and the issue(s) presented for disposition by this Court.

The certified records reveal that the K & H Construction Company, the appellant herein, entered into two separate lease agreements with The Realty Trust of the late William E. Dennis, the appellee herein, for certain separate parcels of land under the care and supervision of the Trust. The first agreement was executed in 1983 and the second was executed in 1985. Both lease agreements were for the period of twenty (20) years certain with optional periods of ten (10) years and twelve (12) years, respectively.

The genesis of these three appeals between the same parties relating to the two lease agreements mentioned *supra* commenced in 2002, when prior to the expiry dates of both agreements, the appellee re-entered the leased premises and dispossessed the appellant of its leasehold right to the properties. The grounds given by the appellee for the re-entry was that the appellant had failed to pay the rentals as they had become due and that in consonance with the requisite provisions of the leases same constituted a violation and as such, the lease agreements terminated *ipso facto*.

We note from the records of the first appeal that on December 4, 2006, the appellant, K & H Construction Company filed a petition for declaratory judgment in the Sixth Judicial Circuit, Civil Law Court, against the appellee, the Realty Trust of the late William E. Dennis. In the petition, the appellant implored the trial court to declare not only that the two lease agreements between the parties were still valid and enforceable, but also that the optional periods therein were similarly valid and enforceable. The appellee filed its returns, contending basically that as the appellant had failed to pay its rent, as provided for in the lease agreements, same constituted a violation which thereby vested in the appellee the right to regard the agreements as terminated *ipso facto* by their terms and conditions; and further, that the optional periods provided for under the said lease agreements were also rendered void since the lease agreements had terminated.

At the close of the production of evidence and the conclusion of the trial on February 15, 2007, the assigned Circuit Judge of the Sixth Judicial Circuit, Civil Law Court, His Honor Emery S. Paye, rendered final judgment in favor of the appellant. The judge ruled that the lease agreements and the optional periods were valid and enforceable against the appellee. The appellee, not being satisfied with the said judgment, excepted thereto and announced an appeal to the Honorable Supreme Court thus giving rise to the first appellate review of this case.

The Supreme Court, having entertained arguments *pro et con*, on the first appeal, rendered its first Judgment in the matter on June 27, 2008, affirming the trial court's ruling that the lease agreements and the optional periods were indeed valid and enforceable against the appellee, and that the appellee's re-entry on the premises and depriving the appellant of its leasehold right were illegal. The Court stated thus:

“While the terms of a valid agreement are binding on competent contracting parties, a provision which seeks to usurp the constitutional and statutory functions of a court of law by stipulating that determination and enforcement of stipulated rights and obligations are executed outside a court of law is a violation of the law. The position assumed by the [appellee] to cry violation and quickly re-enter and repossess the demised premises without any recourse to a court of law constitutes a flagrant disregard for the rule of law.” *The William E. Dennis Sr., Realty Trust Estate v. K & H Construction Company*, Supreme Court Opinion, March Term, A.D. 2008.

The below is this Court’s specific Judgment and Mandate at the first appeal:

- 1) “The final judgment rendered by the trial court declaring the two agreements of lease of 1983 and 1985, along with their respective optional clauses, valid and enforceable, is hereby affirmed.
- 2) The time period of The William E. Dennis Sr., Realty Trust Estate’s illegal re-entry and repossession of the demised property, commencing April 2002 to the date of rendition of this Opinion, said period being six (6) years, is hereby ordered restored and to be exercised by the K & H Construction Company on each of the two agreements of lease executed between the parties.
- 3) Also, an additional one (1) year is ordered added to each six (6) year as imposed penalty to offset for interest on the rentals unlawfully collected during the period of The William E. Dennis Sr., Realty Trust Estate’s illegal re-entry and repossession of the demised premises.” *Id.* March Term, A.D. 2008

On November 19, 2008, four months after the afore-stated Judgment and Mandate, the trial court resumed jurisdiction over the matter, under the gavel of His Honor Yussif D. Kaba. In an attempt at enforcement of the Judgment and Mandate of the Supreme Court of June 27, 2008, Judge Kaba circulated to tenants an order for all rents to be paid to the appellant. This order of Judge Kaba which triggered the second appellate review of this case is herein quoted below as to wit:

“November 19, 2008.

To : **ALL TENANTS OCCUPYING THE PREMISES OF THE LATE WILLIAM E. DENNIS ESTATE LOCATED AT PAYNES AND WARNER AVENUES, THE CORNER OF 16TH & 17TH STREET, SINKOR, MONROVIA, LIBERIA SPECIALLY THE FOLLOWING PERSONS AND OR/INSTITUTIONS:**

- A) The National Elections Commissions (NEC)
- B) Libyan Arab Jamahiriya
- C) Mr. Emery Dennis

D) Hilary Dennis

You are hereby ordered to pay all rentals due on the premises you occupy to the Management of K&H Construction Company by and through its General Manager Adel Kamad. This, our order is in keeping with the mandate of the honorable Supreme Court of the Republic of Liberia growing out of the case:

K and H Construction Company... Petitioner	}	Petition for Declaratory Judgment
-- Versus		
William E Dennis Sr. Realty Trust et al... Respondent		

Thanks and kind regards
Yussif D. Kaba
Assigned Circuit Judge
6th Judicial Circuit Court
Montserrado County/R.L”

The appellee believing that the order quoted *supra* was contrary to the Supreme Court’s Mandate and Judgment of June 27, 2008, and that Judge Kaba was erroneously attempting to enforce same, on May 27, 2009 filed an eleven (11) counts bill of information before the Supreme Court. The bill of information essentially alleged that the six years plus one year penalty granted to the appellant was intended to restore the time the appellee wrongfully withheld the property and as such the appellant is not entitled to proceeds or rents that were due before the date of said Mandate since the penalty of a total of seven (7) was sufficient.

On June 15, 2009, the former Chief Justice, His Honor Johnnie N. Lewis, upon review of the appellee’s application, ordered the Clerk of Court to issue the alternative writ directing the appellant to file its returns to the bill of information. In obedience thereto, the appellant filed its returns contending that the appropriate remedy available to the appellee was a petition for re-argument since the appellee wanted the Court to only clarify its judgment. The appellant also stated that the appellee had disobeyed the Supreme Court’s Judgment and Mandate by holding on to the two premises and collecting rents in advance which were due the appellant.

On July 23, 2010, the Supreme Court, after entertaining arguments *pro et con* granted the bill of information on grounds that the appellee was entitled to all rents prior to the Court’s Judgment of June 27, 2008 and that bill of information was the proper remedy to correct the enforcement of its Judgment and Mandate. The Court held thus:

“...every court entering a decree retains jurisdiction until its judgment is fully satisfied; that whoever is therefore aggrieved in the course of execution of said decree has remedy by way of bill of information.”
William E. Dennis, Sr. Realty Trust v. Kaba et al., Supreme Court Opinion, March Term A.D. 2010.

Though the Supreme Court granted the bill of information in favor of the appellee, The William E. Dennis, Sr. Realty Trust, the Court however considered the unrefuted allegation by the appellant that the appellee was still in possession of the premises and had collected both present and future rentals, all of which the Court regarded as gross disobedience to its Judgment and Mandate of June 27, 2008. In view of this the Court instructed the trial judge to investigate the appellee as to its compliance with the Mandate and Judgment. Below is an excerpt of this Court's second Judgment and Mandate in this case, instructing the trial court to wit:

- 1) *"To conduct an investigation in order to determine rentals paid by tenants/lessees of the Estate of the William E. Dennis Realty Trust Company to the second respondent, K&H Construction Company; if the court determines that second respondent collected and received any payments for period precedent to the June 27, 2008 mandate, said amount shall be deducted preferentially from all rentals due and payable to second respondent immediately hereafter.*
- 2) *Investigate allegations that informant did not vacate the premises immediately as of June 27, 2008 in addition to collection of rentals which legitimately were payable to second respondent; if said allegation is verified to be true, appropriate rentals as well as collections made for the period commencing June 27, 2008 shall be paid by informant to second respondent*
- 3) *That the mandate herein directed shall be executed and returns filed thereto thirty (30) days as of the date of receipt of this Judgment."* Id. March Term A.D. 2010.

We find no indication in the records authenticating whether or not this second Judgment and Mandate of the Supreme Court was complied with by the trial court by conducting the investigation. What we see in the records is that the appellee, The William E. Dennis, Sr. Realty Trust, on August 23, 2012, filed a petition for declaratory judgment before the Sixth Judicial Circuit, Civil Law Court, requesting that court's validation of its interpretation of the Supreme Court's first Judgment and Mandate of June 27, 2008 with regards to the time of commencement of the optional periods under both lease agreements. The petitioner's interpretation is that the optional periods under the lease agreements extended to November 30, 2010 and September 30, 2012, respectively and that as of December 1, 2010 and October 1, 2012, all income generated from rents should be shared on a 50-50 basis as agreed to in the lease agreements. Counts 8, 9, and 10 of the petition for declaratory judgement capture the appellee's interpretation of the Supreme Court first Judgment of June 27, 2008, which we quote herein below:

- 8) "Petitioner submits and says that in keeping with the Opinion and Judgment of the Supreme Court, *vis-à-vis* the herein mentioned lease agreements, respondent has the following rights:

Under the September 8, 1983 Lease Agreement:

- a) Respondent had one (1) year five (5) months of the certain period plus the one (1) year added by the Supreme Court as imposition of penalty to offset interest, thereby granting respondent two (2) years five (5) months under the certain period of said agreement of lease.

Under the December 4, 1987, [1985] Lease Agreement:

- b) Respondent had three (3) years three months of the certain period plus the one (1) year added by the Supreme Court as imposition of the penalty to offset interest, thereby aggregating four (4) years three (3) months remaining in favor of the respondent under the said agreement.”

- 9) That also as to count eight (8) above, petitioner submits and says that considering that the Opinion and Judgment of the Supreme Court were rendered on June 27, 2008, respondent’s certain periods under the lease agreements of September 8, 1983, and December 4, 1987,[1985] were extended up to and including November 30, 2010 and September 30, 2012, respectively.
- 10) That in keeping with Article IV of the lease agreements of September 8, 1983, and December 14, 1987 [1985], and taking into consideration the judgment of the Supreme Court of the Republic of Liberia, petitioner and respondent are entitled to (a) share the income from the rental terms and sign all contracts together as well as agree on all expenses effective December 1, 2010, and October 1, 2012, respectively.”

Having outlined what it regarded as the basis for the petition, the appellee then prayed the trial court as follow:

- i) “That the petitioner has the right, and is entitled to agree on the rental terms, sign all the contracts, agree on all expenses, and share the rental income from the premises, subject of the September 8, 1983, lease agreement on a 50-50 basis with respondent effective December 1, 2010, up to and including September 30, 2020.
- ii) That petitioner has the right, and is entitled to agree on the rental terms, sign all contracts, agree on all expenses, and share the rental income from the premises, subject of the December 4, 1987 [1985], lease agreement on a 50-50 basis with respondent effective October 1, 2012, up to and including November 30, 2020.
- iii) Grant unto petitioner any other and further relief as Your Honor may deem just, legal and equitable in the premises.”

On September 5, 2012, the appellant filed its returns to the petition challenging the jurisdiction of the trial court to interpret the Judgment and Mandate of the Supreme Court; and that the proper course for the appellee to pursue was a bill of information which the appellee had earlier pursued in this very same case and which was also granted by the Supreme Court. Counts 3,4,5,6 and 7 which capture the appellant's contention are herein quoted below to wit:

- 3) "Respondent further [says as] to count two (2) above, and still traversing count two (2) of the petition, respondent contends that so long as a Mandate of the Supreme Court of Liberia has not been enforced fully, the Supreme Court retains jurisdiction over said matter, and, as a result, where any party proceeds to institute further proceedings in the matter that has already been decided by the Supreme Court, it is contemptuous.
- 4) Respondent further says to count three (3) above and maintains that so long a judgment of the Supreme Court remains not fully enforced and legally satisfied, the nation highest Court retains jurisdiction in such case, and, that appropriate relief will be granted by the Supreme Court for enforcement of the judgment upon information to the Supreme Court to this effect. See Bassa Brotherhood and Industrial Society v. Horton et al., 29LLR 554 (1982); also see Kindi v. Foster March Term 2010 Supreme Court Opinion.
- 5) Respondent still traversing count two, and further to count four (4) above says that no subordinate court has authority to interpret, construe or have determine any question of validity arising out non-fully enforced Supreme Court Opinion. For this incurable legal blunder, the entire petition with its affidavit must be overruled, denied and dismissed, as a matter of law.
- 6) Respondent traversing counts three (3), four (4), five (5) six (6), seven (7) eight (8), nine (9) and ten (10) of the petition denies same and says that this Honorable Court does not have any jurisdiction to assume or abrogate to itself powers to review or interpret Opinions of the Supreme Court, not fully enforced; especially so, when there is still pending a mandate from the Honorable Supreme Court to this very court with respect to settling the respective claims of the parties. Respondent contends that for this honorable court to entertain this particular proceeding will be equivalent to exercising concurrent jurisdiction with the Honorable Supreme Court of Liberia, which petitioner counsel knows you do not have.
- 7) Respondent strenuously contends that any party who is dissatisfied with, or believes that the enforcement of a decision of the Supreme Court in a given matter is being impeded or obstructed, may bring information before the full bench. Therefore, if the petitioners believes that the implementation of the Supreme Court mandate with

respect to its decision handed down June 27, 2008, is being improperly enforced or impeded, then the proper course to take will be to institute information proceeding before the full bench; not a declaratory judgment action before a subordinate court.”

On the same date, that is, September 5, 2012, the appellant filed a motion to dismiss the petition for declaratory judgment, stating therein the same grounds as stated in its returns. Because the returns and the motion to dismiss are analogous, this Court has elected not to quote the motion to dismiss as same would only be repetitious of what is already quoted above.

Faced with the challenge asserted by the appellant to the jurisdiction and authority of the lower court to interpret or extrapolate the Judgment and Mandate of the Supreme Court, the appellee did not deem it befitting to withdraw its petition and file the appropriate instrument before the Supreme Court. Rather, on September 14, 2012, the appellee filed a reply to the petition and a resistance to the motion, in which it persisted that the Judgment and Mandate of the Honorable Supreme Court be reviewed by the Sixth Judicial Circuit, Civil Law Court, a subordinate and inferior court to the Honorable Supreme Court. Count 5 of the appellee’s eight-count reply clearly sets out this point, considered by the appellee to be salient to its contention. We herewith quote the said count 5:

- 5) “That also as to counts two (2), three (3) and four (4) of the returns, petitioner says that a bill of information is only filed before the Supreme Court where the Opinion of the Supreme Court is being wrongly enforced or there is an interference with the enforcement of the judgment of the Supreme Court. Rather, petitioner has requested the court to declare its rights in respect of the two (2) lease agreements vis-à-vis the Opinion and judgment of the Supreme Court...”

The above quoted provision of the appellee’s reply demonstrates the appellee’s rejection to any notion that it is only the Supreme Court which is clothed with the authority to review its Decision, Judgment and Mandate; to make clarification thereon, and to determine if indeed its mandate has been complied with or not honored. The act by appellee also demonstrates its intent to disobey the two successive Judgments and Mandates of the Supreme Court and to further divest the appellant of its leasehold rights even after the Supreme Court’s 2008 and 2010 Judgments and Mandates.

Additionally, on November 23, 2012, His Honour Yussif D. Kaba, who initially presided over this case back then in 2010 and who was specifically instructed to conduct an investigation to determine whether the parties had complied with the Court’s Judgment and Mandate, denied the motion to dismiss on grounds that the Supreme Court lacks jurisdiction over its Judgment once that Judgment has been transmitted to the trial court for enforcement. He stated in his ruling that the trial

court had the authority to determine or establish the rights of the parties regarding the optional periods stipulated in the lease agreements, which he termed were uncertain in the Supreme Court's Judgment and Mandate. Hence, he would proceed to give meaning to the vague and ambiguous Judgment and Mandate of the Supreme Court. We quote the relevant excerpt from Judge Kaba's ruling on the motion to dismiss, as follows:

"To the mind of this court, once a mandate in an action has been transmitted to the lower court, the upper court ceases to exercise jurisdiction over that matter...The Supreme Court Opinion, alluded to by the movant [appellant], in no way makes a determination as to the rights of the parties under the optional period referred to by the parties for declaratory judgment; therefore this court believes that it has the competence and capacity to hear and make determination in this matter [optional period]."

The records reveal that the appellant excepted to the trial court's ruling denying the motion to dismiss but, for reasons best known to the appellant and which we do not believe is worth exploring, it neglected to pursue any further action. Accordingly, thereafter, on January 14, 2013, upon the conclusion of trial, Judge Kaba entered final judgment in favor of the appellee, The William E. Dennis Sr., Realty Trust, and affirming the later interpretation of the Supreme Court's Judgment and Mandate of June 27, 2008. We quote pertinent excerpts from the judgment, as follows:

"While the Agreements of September 8, 1983 and December 4, 1987, [1985] were in force and the properties covering said Agreements abandoned by Respondents, Petitioner took possession and rented same to third parties. Consequently, Respondent filed a petition for declaratory judgment before this court to declare its rights in respect of the two Lease agreements and this court declared that the two lease agreements of 1983 and 1987[1985], along with their respective optional clauses were valid and enforceable; to which judgment Petitioner appealed to the Supreme Court of Liberia.

On appeal, the Supreme Court confirmed the validity and enforceability of the two lease agreements of 1983 and 1987 [1985], along with their respective optional clauses. The Supreme Court also ruled that petitioner illegally, possessed and rented the demised premises commencing April 2002, up to and including the date of the rendition of the opinion of the Supreme Court, which was six years, and therefore ordered said period restored to be exercised by the respondent. The Supreme Court further ruled that an additional one year be added as imposition of penalty to offset the interest on the rent unlawfully collected during the period petitioner illegally rented and possessed the demised premises.

It is in respect of the Opinion of the Supreme Court, as mentioned herein above, that petitioner has filed this petition for declaratory judgment, praying this court to declare that (1) it has the right, and is entitled to agree on the rental terms, sign all contracts, agree on all expenses and share the rental income from the demised premises under the September 8, 1983, lease agreement on a 50-50 basis with Respondent effective December 1, 2010, up to and including November 30, 2020; (2) it has the right, and is entitled to agree on the rental terms, sign all contracts, agree on all expenses and share the rental income from the demised premises under the December 4, 1987, lease agreement on a 50-50 basis with respondent effective December 1, 2010, up to and including November 30, 2020.

Respondent in its resistance did not deny the facts as contained in the petition for Declaratory Judgment, but challenged the jurisdiction of this court to entertain the petition for declaratory judgment on grounds that the subject matter of the petition for declaratory judgment was pending before the Supreme Court of Liberia. This court passed upon the challenge to its jurisdiction to hear the petition for declaratory judgment and denied same.

This court says that the certain period of the lease agreement of September 8, 1983, without petitioner entering upon and taking possession of the premises covered by the lease agreement in April, 2002, would have expired on September 30, 2003, while the certain period of the lease agreement of December 4, 1987 [1985], would have expired on the 31st day of July 2005. Accordingly, and in keeping with the opinion and judgment of the Supreme Court, respondent had one year five months of the certain period plus the one year added by the Supreme Court as imposition of penalty to offset interest under the September 8, 1983, lease agreement, thereby granting respondent two years five months under the certain period of said agreement; while under the September 4, 1987 [1985], lease agreement, respondent had three years and three months of the certain period plus one year added by the Supreme Court as imposition of penalty to offset interest, thereby granting respondent four years, three months under said agreement.

Since the judgment of the Supreme Court was rendered on June 27, 2008, respondent certain period under the lease agreement of September 8, 1983, and December 4, 1987 [1985], were extended up to November 30, 2010 and September 30, 2012, respectively. So, in keeping with Article 4 of the lease agreement of September 8, 1983, and December 4, 1987 [1985], and considering the opinion and judgment of the Supreme Court of Liberia, this Court declares that petitioner and respondent are entitled to share income from the rent

on a 50-50 basis after the deduction of all expenses, agree on rental terms, and sign all contracts as well as agree on all contracts as well as agree on all expenses effective December 1, 2010, up to November 30, 2020, on the December 8, 1983 lease agreement and October 1, 2012, up to September 30, 2024, on the December 4, 1987 lease agreement respectively. AND IT IS HEREBY SO ORDERED."

It is from this ruling, that the appellant noted exceptions and announced an appeal to this Court for a third appellate review of this case. As a further step in perfecting its appeal, the appellant, on January 24, 2015, filed a seven-count bill of exceptions from which this Court has elected to quote counts 3, 4, and 5, considered germane to the issues of this appeal, to wit:

- 3) "That Your Honor committed reversible error when you ignored the mandate of the Honorable Supreme Court restoring six (6) years to the respondent's lease period as of the opinion of the Supreme Court.
- 4) That Your Honor also committed reversible error when you failed to do the arithmetic ordered by the said Opinion in the interest of both parties and yet granted the summary judgment, to take effect as of 2010.
- 5) That Your Honor committed error when you elected to invoke the 50-50 basis irrespective of firstly executing the mandate of the Honorable Supreme Court."

Having meticulously attended to the facts from its genesis, that is the first and second appeals and attended to the arguments advanced by the lawyers, this Court has culled two issues dispositive of this third appeal. They are:

- (1) Whether the trial court erred in denying the motion to dismiss the petition for declaratory judgment and asserting that it had jurisdiction to resolve the purported uncertainty in the Supreme Court's Judgment and Mandate. Rephrased, can a lower court interpret or review a judgment of the Supreme Court?
- (2) Whether under the Judgment and Mandate of the Supreme Court, the optional periods of the two (2) lease agreements, were to commence December 1, 2010 and October 1, 2012 respectively as advanced by the appellee?

As to the first issue, which is whether the trial court erred in denying the motion to dismiss the petition for declaratory judgment and asserting that it had jurisdiction to resolve the purported uncertainty in the Supreme Court's Judgment and Mandate, this Court states in the strongest of terms that it was a reversible error by the trial court under the gavel of Judge Kaba to attempt to usurp the authority of

this Court of *denier resort* by imputing upon himself the authority to interpret and review the Honorable Supreme Court's Judgment and Mandate.

The Constitution, Statutes, and Opinions of the Supreme Court state in clear and unambiguous terms that

“the judgments of the Supreme Court shall be final and binding and shall not be subject to appeal or review.” Article 65 of the 1986 Constitution, The Civil Procedure Law, Rev. Code 1:51.2, Judiciary Law, Rev. Code 17:... , *Kiazolu-Wahab v. Helou Brothers, et al.*, 24LLR 259-261(1975); *Merriam v. ITC*, 32LLR 513, 527 (1985); *METCO v. Chase Manhattan Bank*, 34LLR 419, 454 (1987).

Given this intrinsic and rudimentary principle of law, cited above, this Court is surprised that Judge Kaba, having been specifically mandated to investigate as to whether the appellee had complied with the Court's Judgment and Mandate of June 27, 2008 could resume jurisdiction over the same case and rule that he is competent and clothed with the requisite authority to clarify the Supreme Court's Judgment and Mandate because it is vague and ambiguous. As stated earlier in the case *William E. Dennis, Sr. Realty Trust v. Kaba et al.*, March Term A.D. 2010, the Court articulated in clear diction that:

“every court entering a decree retains jurisdiction until its judgment is fully satisfied; that whoever is therefore aggrieved in the course of execution of said decree has remedy by way of bill of information.”

We are bewildered, that Judge Kaba would ignore the principle of law enounced in this recent Opinion and make such overreaching statement regarding this Court's Judgment and Mandate. Firstly, the province of the Supreme Court Mandates sent for enforcement by the lower courts, and secondly, the course that should be pursued in case of doubts or disputes between the parties as to the enforcement of the Mandates lie exclusively with the Supreme Court. *Nyumah et al., v. Kontoe*, 40LLR 14, 20 (2000); *Houssenini v. Jawhary*, Supreme Court Opinion, March Term, 2005; *Jawhary v. Ja'neh*, Supreme Court Opinion, October Term A.D. 2012.

The ruling of Judge Kaba in the motion to dismiss wherein he usurped the authority of this High Court is not only a misinterpretation of the long standing principles of law in this jurisdiction, but its acceptance would be tantamount to depriving the Supreme Court of the requisite jurisdiction to clarify its decision or give interpretation to the same where the parties disagree as to what the Court intended by the said decision or judgment, as occurred in the instant case.

In numerous opinions and even in the most recent decision rendered by the Supreme Court between the very same parties, this Court acknowledged and recognized that only a bill of information can remove uncertainty from its

judgment or correct the enforcement of its judgment. *Nyumah et al., v. Kontoe*, 40LLR 14, 20 (2000); *Houssenini v. Jawhary*, Supreme Court Opinion, March Term, 2005; *William E. Dennis, Sr. Realty Trust v. Kaba et al*, Supreme Court Opinion March Term A.D. 2010, *Jawhary v. Ja'neh*, Supreme Court Opinion, October Term A.D. 2012.

In the *Nyumah* case, the facts revealed that on December 16, 1999, the Supreme Court rendered its final judgment in an action of ejectment in favor of the respondent/plaintiff but inadvertently did not specify the property in detail. The informants/defendants subsequently filed a bill of information before this Court, stating among others things that the final judgment of the Court was uncertain since the property awarded the respondent/plaintiff was not designated with certainty and precision in the Court's judgment. The respondent/plaintiff, in response to the bill of information contended that the uncertainty in the Court's judgment should be clarified in the trial court rather than the Supreme Court. The Court rejected the respondent/plaintiff's contention and held thus:

“a bill of information is the proper remedy available to a party litigant to seek the aid of this Court where its mandate is being improperly enforced by a trial court and that it should be granted so far as it relates to the uncertainty of the Court's judgment.” Id. 20

Like the informant in the *Nyumah* case, the appellee herein took advantage of and avail itself of this very same principle relating to the province of a bill of information when in 2010 Judge Kaba ordered that all rents be paid to the appellant herein which was indeed erroneous to the enforcement of the Supreme Court Judgment of June 27, 2008. To correct the irregular enforcement of the Court's Mandate the appellee filed a bill of information before this Court which was upheld and granted on grounds that the bill of information was the proper remedy available to the appellee.

We wonder as to why the appellee neglected to employ the same grace of the law it had earlier relied on in 2010 when it filed a bill of information before this Court in respect of the trial court's enforcement of this Court 2008 Mandate as regards rents. It is baffling as to why the appellee having graciously benefitted from the province of the bill of information could subject the Judgment of this Court to review and clarification by a subordinate court. We wonder to whom shall the appeal lie?

We hold therefore that the ruling of Judge Kaba in the motion to dismiss wherein he stated that he is competent and clothed with the authority to clarify the Judgment and Mandate of the Supreme Court is erroneous and without the pale of the law. We also hold that where the parties to a case are in disagreement with respect of the Supreme Court's judgment or where the trial court is proceeding incorrectly in enforcing the Supreme Court's judgment, a petition for declaratory

judgment is not the appropriate remedy, as no circuit judge can review or reverse a Judgment of the Supreme Court.

The Court shall now discuss the second issue of this case which is whether or not the optional periods under the two (2) lease agreements, as of the rendition of the Supreme Court's Mandate on June 27, 2008, commenced as of December 1, 2010 and October 1, 2012 respectively.

A recap of certain pertinent facts is necessary in disposing of this second issue. As stated earlier in this opinion the Supreme Court in rendering its Judgment in this same case during the March Term, A.D. 2008, ordered that the appellant be repossessed of its leasehold right, restored six (6) years on the two lease agreements to be exercised by the appellant plus a penalty of one year to offset interests for unlawful rents collected by the appellee. Notwithstanding, the records revealed that it took the lower court a full one year to execute and implement the decision of this Court. The records do not disclose the reasons for the delay or why in the face of the said Mandate, the appellee did not see it fit to forthwith place the appellant in possession of the property, as ordered by this Court. This is evident by the fact that during the second appeal in 2010, the Supreme Court in rendering its opinion noted that the appellee was still in possession of the premises and had collected rents.

We are further concerned that the lawyers could concede on the minutes of this Court that the appellant was actually repossessed of its leasehold rights in 2009, one full year after the rendition of the Supreme Court's Mandate of June 27, 2008.

The records show that thereafter and barely few years after complying with the Court's Mandate that was long over-due its date of enforcement, the appellee, on August 23, 2012, filed a petition for declaratory judgment before the Sixth Judicial Circuit in which it requested that court to declare its rights under the Supreme Court's 2008 Judgment and Mandate and to have the trial court interpret the said Judgment and Mandate as regards the optional periods. According to the appellee's interpretation the optional periods under the lease agreements extended to November 30, 2010 and September 30, 2012 respectively and that as of December 1, 2010 and October 1, 2012, all income generated from rents should be shared on a 50-50 basis as agreed in the lease agreements. It is this contention that we must now clarify as to whether or not the optional periods of the two (2) lease agreements commenced as of December 1, 2010 and October 1, 2012, respectively.

In answering this contention we must state here that had the appellee complied with this Court previous Mandate and Judgment of June 27, 2008, or even sought clarification from this Court as it did in 2010 as to the time the optional periods should have commenced under the two lease agreements, this third appeal would not have been before us and our interpretation of this would have been different since it is obvious that the Court's restored time would have been computed as of 2008. Notwithstanding, the record is replete with the appellee's disobedience to

comply with this Court's Mandate of June 27, 2008, to the extent that even up to 2010 the Supreme Court noted the appellee's disobedience and instructed the trial court to investigate the appellee as per compliance to its Mandate and Judgment. Hence, it is prudent and highly equitable that in computing the certain and optional periods of the two lease agreements, this Court will take into consideration the totality of the appellee's acts of defiance, to include the time the appellee surrendered the leased premises to the appellant.

Ordinarily, had the appellee allowed the two (2) lease agreements to run uninterrupted or sought the aid of the court before interfering with the appellant's leasehold, the two (2) lease agreements would have expired 2013 and 2017, respectively and the property would have quietly reverted to the appellee. But this was not the case. Rather, the appellee chose to divest the appellant of its legitimate leasehold right for six (6) years without any legal basis. This act of the appellee necessitated the Supreme Court to order that the appellant be placed in possession of the premises, restored the six (6) years the appellee illegally robbed the appellant and penalize the appellee by adding an additional one (1) year. For the sake of clarification, we must state here that the one (1) year penalty imposed on each of the lease agreements is an exclusive entitlement granted the appellant and it automatically extends the certain periods of the two (2) lease agreements by one (1) additional year.

This being said, the Court shall now compute the certain and the optional periods of the two lease agreements as per the date the appellee was placed in possession that is, July 1, 2009. The 1983 lease agreement which had a certain period of 1 $\frac{1}{2}$ year before appellee illegal re-entry extended to 2 $\frac{1}{2}$ by the one year penalty imposed by the Supreme Court. Given the fact that the appellant repossessed the premise on July 1, 2009, it is equitable that the certain period should have commenced as of July 1, 2009 and end July 1, 2012. After this, the optional period (the time for fifty-fifty sharing in the rents) should commence as of July 1, 2012 and end 2020.

The 1985 lease agreement which had a certain period of 3 years before the appellee's illegal re-entry extended to 4 years by the one year penalty imposed by the Supreme Court. Given the fact that the appellant repossessed the premises on July 1, 2009, it is equitable that the certain period should commence as of July 1, 2009 and ends July 1, 2013. After this, the optional period (the time for the fifty-fifty sharing in the rents) should then commence as of July 1, 2013 and end 2024.

It being evident and overwhelmingly confirmed by the records that the appellee and its lawyers hindered and impeded the appellant's right to peacefully possess and enjoy the demised premises even to the extent of obstructing and disobeying the Judgment and Mandate of this Honorable Court, the optional periods of the two lease agreements shall commence as of the date of rendition of this Judgment and shall end 2020 and 2024, respectively.

Also, the lawyers for the appellee are fined US \$500.00 (Five Hundred United States Dollars) to be paid into Government revenue and a copy of the receipt of payment tendered to the Marshall of the Supreme Court within 72 hours after rendition of this Judgment.

WHEREFORE AND IN VIEW OF THE FOREGOING, the judgment of the lower court which affirmed the appellee's interpretation of this Court judgment is hereby reversed in its totality.

The Clerk of this Court is hereby ordered to send a mandate to the court below to resume jurisdiction and proceed in accordance with this Opinion. Costs are ruled against the appellee.

Judgment Reversed

When this case was called for hearing, Counsellors Samuel R. Clark of the Clark & Associate Law Firm, Theophilus C. Gould of the Kemp & Associates Law Firm and Nyenati Tuan of the Tuan Wreh Law Firm appeared for the appellant. Counsellor J. Johnny Momoh of the Sherman and Sherman Incorporated appeared for the appellee.